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filing ₦50
M/N ₦500
Order ₦200
Oath ₦20
Service ₦100
₦570

IN THE NATIONAL INDUSTRIAL COURT OF NIGERIA

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

21210S150 SUIT NO: NICN/LA/378/2021

NATIONAL INDUSTRIAL COURT OF NIGERIA
RECEIVED
04 APR 2022
9:30
LAGOS JUDICIAL DIVISION

BETWEEN:

AMAL ABDULRAHMAN CLAIMANT

AND

1. IKEJA HOTEL PLC
2. MARRIOTT INTERNATIONAL DEFENDANTS/APPLICANTS
3. REX NIJHOF

MOTION ON NOTICE

BROUGHT PURSUANT TO ORDER 57 RULE 4 (1) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA (CIVIL PROCEDURE) RULES 2017, SECTION 46(1) OF THE FEDERAL CONSTITUTION OF THE FEDERAL REPUBLIC OF NIGERIA 1999 (AS AMENDED) AND UNDER THE INHERENT JURISDICTION OF THIS COURT.

TAKE NOTICE that this Honourable Court will be moved on the _____ day of _____ 2022 at the hour of 9 O'clock in the forenoon or so soon thereafter, as Counsel may be heard on behalf of the Defendants/Applicants praying for the following:

1. **AN ORDER** of this Honourable Court extending time within which the Defendants/Applicants may file and serve its Memorandum of Appearance, Statement of Defence, List of Witness, Witness Statement on Oath, List of documents and Copies of every document to be relied upon at the trial of this suit;

2. **AN ORDER** of this Honourable Court deeming the Defendants/Applicants' Memorandum of Appearance, Statement of Defence, List of Witness and Witness Statement on Oath, List of documents and Copies of every document to be relied upon at trial as properly filed and served and the Defendants/Applicants having paid the appropriate fees in this suit;

3. **AND FOR SUCH FURTHER OR OTHER ORDER(S)** as this Honourable Court may deem fit to make in the circumstances.

TAKE FURTHER NOTICE that the grounds upon which the application is brought are as follows:

1. By the rules of this Honourable Court, the Defendants/Applicants had 14 (fourteen) days within which to file its Memorandum of Appearance, Statement of Defence, List of Witness and Witness's Statement on Oath, List of documents and Copies of every document to be relied upon at trial upon being served with the originating processes;

2. However, the Defendants/Applicants filed its processes on 1 April 2022 by which it was out of time;

3. The Orders of this Honourable Court is needed to regularize the said Court processes which were filed out of time.

Dated this …….. day of April 2022.

……..

F. Boma Ayomide Alabi, OON, SAN.
Alabota Happy-Great (signed)
Abimbola Olaniran
Somkenechukwu Okoye
Malik Afolabi
Imekan Essien
Amaka Ibekwe
Primera Africa Legal
(Defendants' Counsel)
1B Utomi Airie Avenue
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alabota@primeraal.com
sokoye@primeraal.com
mafolabi@primeraal.com

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FOR SERVICE ON:

The Claimant

C/O Her Counsel
Nnamdi Awa-Kalu, Esq.
Awa U. Kalu (SAN) & Partners
(Claimant Solicitor)
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(234) 803 692 8632
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IN THE NATIONAL INDUSTRIAL COURT OF NIGERIA

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

SUIT NO: NICN/LA/378/2021

BETWEEN:

AMAL ABDULRAHMAN CLAIMANT

AND

1. IKEJA HOTEL PLC
2. MARRIOTT INTERNATIONAL DEFENDANTS/APPLICANTS
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NATIONAL INDUSTRIAL COURT OF NIGERIA
RECEIVED
04 APR 2022
LAGOS JUDICIAL DIVISION

AFFIDAVIT IN SUPPORT OF MOTION ON NOTICE

I, **Imekan Essien,** Male, Adult, Christian, Nigerian Citizen of No. 1B, Utomi Airie Avenue, Off Admiralty Way, Lekki Phase 1, Lagos State, do hereby make Oath and state as follows:

1. I am a Legal Practitioner in the Law Firm of Primera Africa Legal, Counsel to the Defendants/Applicants in this case and by virtue of which position I am competent to depose to this affidavit.

2. That I have the consent and authority of both my employer and the Defendants/Applicants to depose to this affidavit.

3. The facts and matters, to which I set out below, derive partly from my own personal knowledge and partly from the documents and sources to which reference is made in the body of this statement. Where the facts are within my own knowledge, they are true. Where the facts are not within my own knowledge, I verily believe them to be true.

4. I am aware that the Originating process in this suit was served on the Defendants/Applicants sometime in November

5. The delay in filing the Statement of Defence and other accompanying processes was inadvertent as we were expecting documentation for substantiating our Defence.

6. Nevertheless, the Defendants/Applicants' Statement of Defence and all requisite processes have now been filed and served on the Claimant.

7. That I know that having filed the aforementioned processes out of time, the Defendants/Applicants herein need to obtain an Order of this Court regularizing the said processes.

8. In compliance with the Rules of this Court, the Defendants/Applicants have paid the prescribed default fees. Proof of payment is attached and marked **Exhibit A.**

9. That failure to file the Memorandum of Appearance and Statement of Defence to the originating process served on the Defendants/Applicants within the stipulated time was not as a result of disrespect to this Honourable court but due to human failings.

10. That it is in the interest of justice for this Honourable Court to grant the Defendants/Applicants' application. The Claimant/Respondent will not be prejudiced by the grant of this application.

11. I swear to this affidavit solemnly and conscientiously believing its content to be true and correct in accordance with the Oaths Acts.

.....
DEPONENT

Sworn to at the National Industrial Court Registry, Lagos.

This ....4th.....day of April 2022.

BEFORE ME

ADEBOWALE OMOWUMI ADEBOWALE
REGISTRAR II

COMMISSIONER FOR OATH

IN THE NATIONAL INDUSTRIAL COURT OF NIGERIA

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

SUIT NO: NICN/LA/378/2021

BETWEEN:

AMAL ABDULRAHMAN — CLAIMANT

AND

1. IKEJA HOTEL PLC
2. MARRIOTT INTERNATIONAL
3. REX NIJHOF

} DEFENDANTS/APPLICANTS

WRITTEN ADDRESS IN SUPPORT OF MOTION ON NOTICE

1. INTRODUCTION

1.1 This is a written address in support of the Defendants/Applicants' application brought pursuant to Order 57 Rule 4(1) of the National Industrial Court (Civil Procedure) Rules 2017 and Section 6 (6) of the 1999 Constitution of the Federal Republic of Nigeria. Summarily, the motion seeks to regularize the Defendants/Applicants Memorandum of Appearance, Statement of Defence, List of Witness and Witness's Statement on Oath, List of documents and Copies of every document to be relied upon at trial which were filed out of time, the appropriate default fees having been paid.

1.2 In support of the application is an 11 paragraphed Affidavit deposed to by Alice Odibo, Legal Administrator in the Law firm of Primera Africa Legal, Counsel to the Defendants/Applicants. The Defendants/Applicants rely on all the paragraphs of the affidavit.

2. SUMMARY OF FACT

2.1 The facts of this case are as can be gleaned from the affidavit in support of the motion on notice.

3. ISSUE FOR DETERMINATION

3.1 It is our humble submission that the sole issue arising for determination is;

Whether the Defendants/Applicants are entitled to the grant of the Reliefs sought in this application;

4. SUBMISSIONS ON THE SOLE ISSUE:

4.1 It is our submission that in order to arrive at a just determination of the Defendants application, the Honourable Court may be guided by the provisions of the Rules of Court as well as the decisions of the Supreme Court on the issue of extension of time placed before the Honourable Court by the Defendants/Applicants.

4.2 The tenor of Order 57 Rule 4 of the National Industrial Court (Civil Procedure) Rules 2017, empowers this Honourable Court to extend the time for doing any act either before or after the expiration of the time set by the Rules. In the same vein, Order 5 Rule 1 declares such default in complying with the Rules to be a mere irregularity and empowers this Honourable Court to "give any direction as it thinks fit to regularize such steps." This submission has received Judicial assent in Alhaji Idrisu Sanni **v. Mallam Ahmadu Salihu Bello Agara [2010] 2 NWLR (Pt. 1178) 371 at p 393 paras. B – D.**

4.3 Without a doubt, the application of Order 5 Rule 1 is entirely within the discretion of this Honourable Court. This discretion is to be exercised judicially and judiciously, considering all the circumstances and evidence presented before the court. See the case of **JVC Professional Products (UK) Ltd v. Mr. Michael Famuyide [2011] 4 NWLR (Pt. 1238) 572 at pp 590 – 591.**

4.4 The Supreme Court in **Alhaji Mohammed Tanko v. United Bank for Africa Plc. [2010] 17 NWLR (Pt.1221) 80 at pp. 97 – 98** held thus:

> **"The intention of the law is to give the parties the opportunity to present their case/defence to enable the Court determine the matter in controversy between them on the merit."** Per Onnoghen, JSC.

4.5 Also relevant is that where the Applicant(s) for Extension of Time adduces reasons for the non-compliance with the Rules as to time, the Court will waive the irregularity and regularize the Applicant's position. We respectfully refer this Honourable Court to **U.T.C v. Pamotei [1989] 2 NWLR (Pt. 103) 244.**

4.6 In the Affidavit in support of the Motion, we have enumerated facts which constitute the reason for the failure in filing the defence within time. We submit with great respect, that this is a proper instance where extension of time sought ought to be granted and we urge on my lord to so hold.

4.7 The Court's disposition on extension of time to enter appearance is well reflected by the Supreme Court in the case of **F.S.B INTERNATIONAL BANK LTD v. IMANO NIGERIA LTD (2000) 7 S.C (PT.1)1**, where the apex Court held thus:

> **"An application for extension of time within which to file .....Statement of defence is a deliberate effort to regularize the default in the late filing of the statement of defence. After all, the whole purpose of rules of court is to ensure that the affairs of the court are carried out in an orderly fashion with reasonable degree of certainty that prescribed acts have been duly complied with by the parties in the interest of justice. Obviously, interest of justice will frown on the parties and the court being enslaved to rules which are intended to promote justice; they should not, as it were, make round-about-turns and constitute themselves engines that would impede the promotion of justice".**

4.8 The Courts have always allowed the extension of time as a means to enter appearance, file relevant Court processes when good cause for the delay is given in the interest of justice. We respectfully refer this Honourable Court to **Alhaji Mohammed Tanko v. United Bank for Africa Plc.** (supra) at pp. 98 – 99.

4.9 It is our humble submission that the application sought will allow the case to be heard on its merits and afford the Defendants/Applicants the opportunity to be heard and ensure the effectual determination of this suit.

4.10 We most respectfully urge this Honourable Court to exercise its discretion in favour of the Defendants/Applicants and grant our application as per the Motion paper.

5. CONCLUSION:

5.1 We humbly submit that sufficient facts have been placed by the Defendants/Applicants before this Honourable Court to enable the court exercise its discretion in favour of the grant of the reliefs sought in this application.

6. LIST OF AUTHORITIES:

a. **Statutory Authorities:**

i. The National Industrial Court (Civil Procedure) Rules, 2016
ii. Constitution of the Federal Republic of Nigeria, 1999 (as amended)

b. **Judicial Authorities:**

i. Alhaji Idirisu Sanni v. Mallam Ahmadu Salihu Bello Agara [2010] 2 NWLR (Pt. 1178) 371

ii. Alhaji Mohammed Tanko v. United Bank for Africa Plc. [2010] 17 NWLR (Pt.1221) 80
iii. F. S. B. International Bank Ltd v. Imano Nigeria Ltd (2000) 7 S.C (Pt.1)1
iv. JVC Professional Products (UK) Ltd v. Mr. Michael Famuyide [2011] 4 NWLR (Pt. 1238) 572
v. U.T.C v. Pamotei [1989] 2 NWLR (Pt. 103) 244

Dated this.....day of April 2022

F. Boma Ayomide Alabi, OON, SAN, LLM, MCIArb.
Alabota Happy-Great (signed)
Sarah Harold Uku
Abimbola Olaniran
Somkenechukwu Okoye
Malik Afolabi
Imekan Essien
Amaka Ibekwe

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FOR SERVICE ON:
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C/O Her Counsel
Nnamdi Awa-Kalu, Esq.

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access

PAYMENT RECEIPT

NBA Stamp and Seal Fees

Payment Ref:

NBA000313565

26/01/2022

PAYMENT DETAILS

Payer:	ALABOTA QUEEN DAGOGO
Email:	alabota@primeraal.com
Reference:	08071501279
Amount:	17500.00
Purpose of Payment:	NBA Stamp and Seal Fees

PAYMENT R.

NBA Stamp and S

NBA000313565

26/01/2022

PAYMENT DETAILS

PAYMENT R.

NBA Stamp and S

Payer: ALABOTA QUEEN DAGOGO

Email: alabota@primeraal.com

Reference: 08071501279

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